NDIS Quality and Safeguards Commission

EXECUTIVE CORRESPONDENCE COVER BRIEF

Executive: Branch Head, NCW PDR: EC22-002429
Executive action: For reply

RESPONSE TO CORRESPONDENCE - SIMON REID

Recommendations	Executive Action
1. That you note the information in this brief.	Noted
2. That you sign the letter to Mr Simon Reid at Attachment A.	Signed

2/12/2022

X Philip Halton

Signed by: PH0055

Philip Halton, Branch Head, North Central West Region

Comments:

Key Points

1. On 17 November 2022, you signed a notice of intention to make a banning order, in respect of Mr Simon Reid for a period of five (5) years. The notice was issued by both email and post to Mr Reid (**Attachment B**).
2. Mr Reid's legal representatives, Tom & Co Legal, note that Mr Reid received the notice on 18 November 2022.
3. The notice provided 13 days for submissions to be made on the proposed banning order.
4. On 22 November 2022, Tom & Co Legal issued correspondence on Mr Reid's behalf to the NDIS Commission seeking an extension of time of 28 days (**Attachment C**). This letter was not made available to the Director, Compliance until 30 November 2022.
5. On 30 November 2022, Tom & Co Legal issued correspondence on Mr Reid's behalf to the NDIS Commission making submissions in respect of the proposed banning order (**Attachment D**). These submissions make representations concerning the timeframe provided for submissions, as well as an assertion that Mr Reid is in custody of relevant evidence to this matter.
6. Attached for your consideration is a proposed response to Tom & Co Legal (**Attachment A**). The response is consistent with that provided to Tom & Co Legal concerning Forward Focused Group Pty Ltd and Ms Vida Reid. Further, the letter makes a direct request for evidence allegedly held by Mr Reid that is material to this matter and the proposed banning order.
7. Under section 73ZN(7) of the *National Disability Insurance Scheme Act 2013* (NDIS Act), you as delegate of the Commissioner, are required to only make a banning order against a person

after giving the person an opportunity to make submissions to the Commissioner on the matter.

7.1. It is considered that the notice dated 17 November 2022 and the letter at **Attachment A** meets this statutory requirement.

7.2. Further, it is not considered that section 73ZN(8) applies in this circumstance, that would set aside the obligation in section 73ZN(7).

Sensitivities

8. It is considered that the provision of 14 days for submissions is appropriate in the circumstances, noting:

8.1. It is consistent with the approach for Ms Reid; and

8.2. The NDIS Commission does not hold any information that identifies any immediate danger to the health, safety or wellbeing of a person with disability posed by Mr Reid.

Consultation

9. Note that LSB advice has not been sought on this matter.

Attachments

Attachment A: Letter to Tom & Co Legal

Attachment B: Notice of intention to make banning order

Attachment C: Letter from Tom & Co Legal dated 22 November 2022

Attachment D: Letter from Tom & Co Legal dated 30 November 2022

Matt Barr **1** / 12 / 2022
Director, Compliance
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